

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

20230930-DK-BUTTERFLY-1, INC.

FMC Docket No. 25-01

Complainant,

vs.

BAL CONTAINER LINE CO., LIMITED,

Respondent

DECLARATION OF BRYCE M. CULLINANE

I, Bryce M. Cullinane, declare as follows:

1. I am an attorney duly admitted to practice before this Tribunal. I am employed by Theodora Oringer PC, attorneys of record for Bal Container Line Co., Limited (“BAL”), Respondent in this matter. If called as a witness, I could and would competently testify to all the facts herein based on my personal knowledge, except where stated upon information and belief.

2. After the Presiding Officer served the July 16, 2025 Order granting in part, and denying in part 20230930-DK-BUTTERFLY-1, INC.’s (“BBBY”) Motion to Compel Production of Documents and Interrogatory Responses, I cleared my schedule (both personal and professional) and travelled from California to Shanghai to spend multiple days working with BAL to ensure compliance with the Order.

3. On August 15, 2025 my office sent a production to BBBY’s counsel of 889 pages. I am informed and believe that these 889 pages represent all bills of lading BAL could locate after a reasonable search that relate to the containers at issue in this case, all meeting minutes BAL could locate after a reasonable search that relate to the matters at issue in this case, and all

screenshots of BAL's booking system showing the containers at issue in this case that BAL could locate after a reasonable search.

4. Since the Presiding Officer issued the Second Revised Scheduling Order, my office has worked with counsel for BBY to complete a mutually agreeable ESI search protocol and to produce documents thereunder.

5. Multiple provisions in the initial ESI search protocol counsel for BBY provided to my office fell outside the scope of discoverable material addressed by the Presiding Officer in the July 16, 2025 Order. My colleague, David Collins ("Mr. Collins") spent considerable time revising the initial ESI search protocol and suggesting revisions.

6. On August 22, 2025, my office provided counsel for BBY, Zachery Morris ("Mr. Morris") our revisions and comments to the initial ESI search protocol.

7. Mr. Morris and my office each provided another round of edits to the initial ESI search protocol. By September 4, 2025, we agreed on all search terms that would be used. At the same time, a dispute arose amongst us regarding the custodians BAL would utilize in implementing the ESI search protocol. Namely, we disputed whether BAL needed to include its owners, Cinda Li and Richard Xu as custodians.

8. On September 4, 2025 my office emailed Mr. Morris to suggest that BAL and BBY file a joint brief before the Presiding Officer directed towards resolution of the custodian issue. The same day, Mr. Morris stated that BBY would be open to joint briefing. I then suggested filing the joint brief on September 19, 2025, however Mr. Morris indicated that BBY would not agree to that date.

9. On September 8, 2025, Mr. Morris suggested filing the joint brief on September 10, 2025. I stated that, due to my current caseload, the earliest I could file would be September

11, 2025. Mr. Morris then stated that BBY would proceed with filing a motion to compel, unilaterally.

10. BAL's headquarters and the vast majority of its employees are located in China. It is my understanding, from the eDiscovery vendor being used in this case (First Legal), that BAL's location in China causes collecting, transferring, and ingesting the custodial email accounts off BAL's servers into a United States e-discovery platform to take longer than undertaking a similar process in the United States.

11. Collection of BAL's nine custodians (and ten associated email accounts) took more than two weeks to complete.

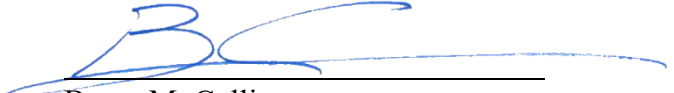
12. On April 29, 2025, and after discussion with BAL, my office provided BBY with the names of five key custodians whose email accounts BAL would agree to search. I included these custodians' names in BAL's Opposition to BBY's Motion to Compel Production of Documents and Interrogatory Responses.

13. On August 15, 2025, after speaking with BAL, I amended BAL's list of key custodians to add the names of four additional BAL employees. Presently, this list encompasses ten accounts, associated with nine key custodians: Cathy Sun (BAL's Equipment Control Director), Qingzhi Liu (BAL's General Manager), Parker Zhu (BAL's Assistant President), Serena Gao (BAL's Key Client Manager), Zoe Zhou (BAL's Marketing Director), Terry Ye (BAL's Vice President), Angela Xu (BAL's Shanghai Customer Service & Documentation Manager), Mona Zhao (BAL's Ningbo Customer Service & Documentation Supervisor), and Ivy Shao (BAL's Qingdao Customer Service & Documentation Supervisor). It is my understanding that these BAL employees represent those who may have communicated with intermediaries that shipped BBY's cargo, or handled, on a day-to-day basis, the issues that presently form the

controversy in this lawsuit. My office included these individuals in BAL's amended responses to BBY's Interrogatories Nos. 5 and 6.

14. I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 17th day of September, 2025, at Costa Mesa, California.



Bryce M. Cullinane

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 17th day of September, 2025, a true and correct copy of the foregoing **DECLARATION OF BRYCE M. CULLINANE** was served via electronic mail on:

Karl C. Huth

huth@huthreynolds.com

Matthew J. Reynolds

reynolds@huthreynolds.com

J. Zachery Morris

zmorris@huthreynolds.com

Mohini P.B. Rarrick

mpriya@huthreynolds.com

Gregory A. Crapanzano II

gcrapanzano@huthreynolds.com

/s/ Crystal McCarey

Crystal McCarey